

24LBCV01771 24LBCV01771

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-09-01

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Case Number: 24LBCV01771 Hearing Date: September 1, 2026 Dept: S27

1. History of Action

Plaintiff filed this action on 8/21/24. The case has been set for Final Status Conference on twelve occasions. The first FSC was scheduled for 10/17/25, and was most recently scheduled for 5/13/26. On the earlier occasions, the FSC was continued because the parties were litigating the case. On 2/20/26, 3/05/26, and 4/24/26, the FSC was continued because the trial court was engaged in trial. On 1/09/26, 1/23/26, 5/01/26, and 5/13/26, Plaintiffs' attorney appeared and indicated he was not ready because he was engaged in another trial. On 5/13/26, the Court specially set a hearing on a motion to dismiss for 9/01/26. The Court also scheduled a trial setting conference for 9/01/26.

2. Motion to Dismiss

a. Parties' Positions

Defendant moves to dismiss. It moves on two grounds. First, it contends more than two years have passed and Plaintiff has not diligently brought the action to trial. Second, it contends Plaintiff failed to serve a settlement order as ordered to do by the Court. Additionally, it notes that Plaintiff sought a continuance of Defendant's summary adjudication motion, only to ultimately fail to oppose the motion on its merits.

Plaintiff opposes, contending she is prosecuting her action and her attorney's engagement in other trials does not justify dismissal of the action. She concedes she made a settlement offer after the Court's deadline to do so, but contend this is not grounds for dismissal of the action.

3. Dismiss

CCP §583.410 permits dismissal for delay in prosecution "pursuant to this article," and one such circumstance is when the plaintiffs, through their own fault, have failed to bring the action to trial within two years. §583.410(a). Such ground for dismissal is discretionary, and CRC 3.1342(e) details the factors to be considered when determining whether to dismiss the action or not.

This is a difficult issue. While it is true that the Court continued the FSC numerous times on its own motion, the FSC was also continued four times due to Plaintiff's attorney's engagement in other trials. This cannot go on indefinitely. The Court is inclined not to impose a harsh dismissal penalty based on Plaintiff's attorneys' past engagement in other matters, but will require Plaintiff's attorneys to schedule the trial, at today's Trial Setting Conference, on a date on which Plaintiff's attorneys will be available. The Court advises Plaintiff that her failure to have an attorney available for trial on the next scheduled trial

date will likely result in dismissal of the action.

The Court finds there is no statutory or other authority permitting dismissal for failure to make a settlement offer, even if the Court orders a party to do so. Importantly, Plaintiff did ultimately make such an offer, though the court-ordered deadline to do so had already passed when they did so. Nor is there authority permitting the Court to grant such a motion because a party sought a continuance of a summary adjudication motion and ultimately failed to oppose the motion; notably, in the interim, the Court advises Plaintiff's attorneys that it would be granting summary adjudication motions directed at fraud causes of action going forward, which likely led Plaintiff to decide not to oppose the motion. The motion on these grounds is therefore also denied.

The parties are reminded that there is a Trial Setting Conference on calendar concurrently with the hearing on the above motion. The Court asks the parties to make arrangements to appear remotely at the FSC and hearing on the motion.¹
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